

FOSTER v. IRBC 2 PROPERTIES, et al.

21CV45573

DEFENDANTS' MOTION FOR LEAVE TO FILE AMENDED ANSWER

This is a wrongful foreclosure case.

Defendant wishes to file an amended answer to the second amended complaint (SAC) to "explain, clarify and simplify the denials and affirmative defenses to the causes of action pleaded against each defendant by making the additions, deletions and edits as well as adding supplemental affirmative defenses ... , and the finality of the judgment in IRBC 2 Properties LLC. v Foster in Calaveras County Superior Court Case No.20 UD13121." (Motion for Leave to File Amended Answer, 2:10-15.)

Courts have long exercised liberality in permitting amendments to pleadings, particularly amendments to answers. *Permalab-Metalab Equipment Corp. v. Maryland Cas. Co.* (1972) 25 Cal.App.3rd 465, 472. Defendants' remedy is to request leave of the court to amend their answer to assert the defenses. " If either party finds, on the hearing of such a motion, that his pleading is not adequate, either by way of allegation or denial, the court may and should permit him to amend" *Gardenswartz v. Equitable etc. Soc.* (1937) 23 Cal.App.2nd Supp. 745, 753.

The Motion for Leave to File Amended Answer encompasses four separate answers.

- Exhibit 1 is the Answer for Defendants IRBC 2 Properties, LLC, Park Tree Investments, LLC, and Wilmington Saving Fund Society, FSB, D/B/A Christiana Trust as Trustee for Residential Trust 3-2;
- Exhibit 2 is the Answer for Connie M. Riggsby and Orion Financial Group, Inc., mistakenly sued as Orion Financial Group LLC;
- Exhibit 3 is the Answer for FCI Lender Services, Inc.; and
- Exhibit 4 is the Answer for California TD Specialists.

The Court does not share plaintiff's expressed confusion as to the exhibits attached to the motion. Each has a separate cover sheet clearly marked with the number of each following exhibit. Although the Declaration of Richard Reynolds is incomplete as to the description of Exhibit 1, the document is a filed pleading and speaks for itself; to require a newly filed motion just to describe the document as plaintiff proposes puts form over substance and is contrary to the concept of judicial economy.

Defendants' Motion for Leave to File Amended Answer is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

MARTIN v. FRASER

22CV46236

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET TWO AND REQUEST FOR MONETARY SANCTIONS

The parties were involved in a romantic relationship for approximately 2½ years and shared one child. In June 2020, plaintiff purchased real property with his sole funds. However, legal title was taken as a joint tenant with defendant who resided at the property for 7 months. Plaintiff now seeks a partition of the property and asserts that a joint tenancy was never agreed to, or intended, between the Parties.

On October 10, 2024, Special Interrogatories, Set Two, were served on defendant. By letter to defense counsel dated December 5, 2023, plaintiff demanded that answers (without objection) and extended the date to December 19, 2023. When defense counsel was relieved, plaintiff further extended the time to respond to the discovery to January 26, 2024. This motion was filed on February 9, 2024. To date no response has been provided.

Where, as here, interrogatories are served by mail, responses must be served 35 days after the date of mailing. (California Code of Civil Procedure ("CCP") §§1013(a), 2030.260(a).) Response due date was twice extended by plaintiff. Failure to serve timely responses results in the waiver of all objections, including those based on privilege or work product. (CCP §2030.290(a).) Where no responses are served, a motion to compel such responses is authorized. (CCP §2030.290(b).)

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (*Leach v. Sup. Ct.* (1980) 111 Cal.App.3rd 902, 905-06; CCP § 2030.290.)

The motion establishes that plaintiff properly served defendant with the Special Interrogatories, Set Two, and defendant never responded. Nor was any opposition to this motion filed. The request for "non-monetary sanctions" in the form of an issue sanction for failure to produce documents is premature, although the Court will consider such a request in the event no answers are provided in compliance with this Order. Moreover, Courts do not ordinarily order monetary sanctions on a nonopposed initial motion to compel responses when no responses have been served. (*See Puritan Insurance Co. v Superior Court* (1985) 171 Cal.App.3rd 877, 884.)

Based on the foregoing, the Motion to Compel Responses to Special Interrogatories, Set Two is **GRANTED**. Sanctions are **DENIED**. Defendant must provide complete verified answers. Without objection, by April 21, 2024.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a